



File No.: EXP202304413

RESOLUTION OF FILE OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On March 15, 2023, a complaint was filed with registration number REGAGE23e00016519454 with the Spanish Agency for Data Protection against LEAST COST ROUTING TELECOM, S.L. with NIF B82470162 (hereinafter, the complained party). The reasons for the complaint are as follows: The complainant submits a complaint regarding the receipt of a call on February 2, 2023, offering services from ORANGE, with the receiving line being on the Robinson List.

Along with the notification, the following documents are provided:

- Proof of registration of the receiving line on the Robinson List.
- Recording and screenshot of the received call.
- Complaint filed with AUTOCONTROL against ORANGE.
- Allegations from ORANGE, identifying the holder of the complained line as LEAST COST ROUTING TELECOM, S.L.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on April 11, 2023, as evidenced by the acknowledgment of receipt in the file.

On May 11, 2023, a response was received by this Agency indicating that the ownership of the calling line ***PHONE.1 belongs to our client STG GROUP, S.A.C, which is a reseller.

Regarding the call made on February 2, 2023, around 14:47h, from line ***PHONE.1 to number ***PHONE.2, there is no record of any call made on that date. The line ***PHONE.1 belongs to the range ***RANGE.1 sub-assigned by the CNMC to our Reseller STG GROUP, S.A.C. since December 29, 2022 (Includes numbering from (...) to (...); and therefore includes the number ***PHONE.1). The holder STG GROUP, S.A.C with CIF of Peru 20606242507 and address at C/JOSÉ PEREYRA, 586 URB.PANAMERICANA NORTE, LIMA, PERU and email socios@stgcompany.com has as its representative in Spain the entity:

TECH TELECOM LEGAL SERVICES, S.L. with address at C/ ANDRÉS MELLADO, Nº 31, LOCAL 18, 28015 MADRID and email LEGAL@TECHTELECOMLEGALSERVICES.C

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

A request for information was made to the representative of STG GROUP SAC, TECH TELECOM LEGAL SERVICES (hereinafter TTLS) on 07/18/2023 via electronic means, and acknowledgment of receipt is recorded on 08/11/2023. A reiteration was made via the same means on the same day, which expired on 08/22/2023.

A reiteration was made by postal means on 08/28/2023, and acknowledgment of receipt is recorded on 09/08/2023.

A reiteration was made via electronic means on 09/25/2023, which expired on 10/06/2023.

On 10/06/2023, it was also sent to the email provided by TTLS, LEGAL@TECH-TELECOMLEGALSERVICES.COM, which is recorded as delivered on 10/06/2023. Through a diligence, it was reported that a call was made to the contact phone of this entity, and the

interlocutor stated that they had not received the requests. Subsequently, it was confirmed that the email was in the spam folder, and they committed to respond as soon as possible. This was also reported in response to the email, documented in another diligence. However, no response has been received to the aforementioned requests.

As of the date of this report, no response has been received from TTLS.

LEGAL GROUNDS

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I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Final provision sixth, section 2 of LGTel 11/2022

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into effect within one year from the publication of this law in the "Official State Gazette." Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to object to receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

Conclusion

The investigations carried out by this Agency indicate that the claimed number belongs to STG GROUP SAC, a company located in Peru. Information requests have been sent to its legal representative in Spain, TECH TELECOM LEGAL SERVICES, both electronically and by post, and no response has been received to any of the requests sent.

It should be noted that the LGT does not confer the Spanish Agency for Data Protection with competencies over a company located in Peru.

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Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the competence of the Spanish Agency for Data Protection.

Thus, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of these proceedings.

SECOND: TO NOTIFY this resolution to LEAST COST ROUTING TELECOM, S.L. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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